

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER			PAGE 1 OF		
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE	
7. FOR SOLICITATION INFORMATION CALL:			a. NAME		b. TELEPHONE NUMBER (<i>No collect calls</i>)
			8. OFFER DUE DATE/ LOCAL TIME		
9. ISSUED BY CODE			10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☐ SET ASIDE: % FOR: ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED ☐ ☐ SERVICE-DISABLED ☐ WOMEN-OWNED SMALL BUSINESS (EDWOSB) SIZE STANDARD: ☐ VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ 8(A)		
11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		13a. THIS CONTRACT IS A ☐ RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	
15. DELIVER TO CODE		16. ADMINISTERED BY CODE		13b. RATING	
				14. METHOD OF SOLICITATION REQUEST ☐ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)	
17a. CONTRACTOR/ OFFEROR CODE FACILITY CODE			18a. PAYMENT WILL BE MADE BY CODE		
TELEPHONE NUMBER			18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM		
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					
19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES		21. QUANTITY	22. UNIT	23. UNIT PRICE
(Use Reverse and/or Attach Additional Sheets as Necessary)					
25. ACCOUNTING AND APPROPRIATION DATA				26. TOTAL AWARD AMOUNT (<i>For Government Use Only</i>)	
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED ☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED . YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:					
30a. SIGNATURE OF OFFEROR/CONTRACTOR			31a. UNITED STATES OF AMERICA (<i>SIGNATURE OF CONTRACTING OFFICER</i>)		
30b. NAME AND TITLE OF SIGNER (<i>Type or print</i>)		30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER (<i>Type or print</i>)		31c. DATE SIGNED

Solicitation/Contract Form Continuation

Wireless Services and Devices in support of MESG1

Continuation of Supplies or Services and Prices/Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Wireless Devices and Services in support of Maritime Expeditionary Security Group One Detachment (MESG1) Guam. The Contractor shall perform in accordance with the enclosed Performance Work Statement (PWS). Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1001	OPTION YEAR 1: Wireless Devices and Services in support of Maritime Expeditionary Security Group One Detachment (MESG1) Guam. The Contractor shall perform in accordance with the enclosed Performance Work Statement (PWS). Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2001	OPTION TO EXTEND SERVICES in accordance with FAR 52.217-8: Wireless Devices and Services in support of Maritime Expeditionary Security Group One Detachment (MESG1) Guam. The Contractor shall perform in accordance with the enclosed Performance Work Statement (PWS). Pricing Arrangement: Firm Fixed Price	6	Months		

Continuation of Description

Performance Work Statement

Wireless Services & Devices

Maritime Expeditionary Security Group One Detachment Guam

1. Description of Requirement

The Maritime Expeditionary Security Group One Detachment Guam has a requirement for cellular phones and wireless access point devices used for services between and within:

- Marianas Region (Guam, CNMI, FSM, Palau)
- Continental United States (CONUS)
- American Samoa
- Australia
- Bahrain
- Bangladesh
- Cambodia
- China
- Djibouti
- Hong Kong
- India
- Indonesia
- Japan
- Kuwait
- Laos
- Macau
- Malaysia
- Papua New Guinea
- Philippines
- Singapore
- South Korea
- Sri Lanka
- Thailand
- Vietnam
- Timor-Leste
- Brunei-Darussalam
- Taiwan

The contractor will provide a minimum of:

39 cellular phones capable of delivering secure encrypted voice/sms/mms/data transmissions with unlimited data services locally and internationally.

8 wireless access point (mobile hotspot) devices with a minimum of 30GB of local and international data capability.

All 47 devices will include any 911 and Local Number Portability (LNP) surcharges which are mandatory.

Period of Performance:

Base: 15 May 2026 thru 14 May 2027

Option Year: 15 May 2027 thru 14 May 2028.

2. Services

2.1. The contractor shall execute all activities for activating, migrating and transfer of services if applicable.

2.2 Domestic: Unlimited local incoming/outgoing voice minutes, unlimited incoming/outgoing local data transfer, unlimited sms/mms messaging, unlimited local mobile to mobile voice/data, unlimited internet email, unlimited web-browsing, call-waiting, caller-ID, three-way conferencing, Digital Voicemail, Call-Forwarding, Speakerphone option and expandable home coverage. Service and equipment supporting this plan must work anywhere in Guam to including Naval Base Guam and Andersen Air Force Base. Service will not include 1-900 or collect calls for all devices. The contractor, at the network level, shall block and prevent all service users from initiating, connecting to, or accepting charges for 1-900 or collect call services on all wireless lines and devices covered under this contract.

2.3 International: Unlimited international incoming/outgoing voice minutes, unlimited incoming/outgoing international data transfer, unlimited sms /mms messaging, unlimited international roaming, unlimited mobile to mobile voice/data, unlimited internet email, unlimited web-browsing, call-waiting, caller-ID, three-way conferencing, Digital Voicemail, Call-Forwarding, Speakerphone option, and expandable home coverage. Service and equipment supporting this plan must work anywhere in Guam to including Naval Base Guam and Andersen Air Force Base. Service will not include 1-900 or collect calls for all devices. The contractor, at the network level, shall block and prevent all service users from initiating, connecting to, or accepting charges for 1-900 or collect call services on all wireless lines and devices covered under this contract.

2.4 The contractor shall maintain their system and end-user equipment to the standards established in the company's quality assurance program. The contractor will train users to manipulate equipment and features to their fullest extent without incurring additional expense to the Government.

2.5 Service Provider will notify the Technical Point of Contact (TPOC) of all planned service outages two business days prior to scheduled outage. Reports shall include: affected areas, estimated timelines, and Provider POC specific to outage.

3. Equipment & Device Accessories

3.1 The contractor shall provide a description of the device's capabilities and instructions on its use. Contractor shall provide the standard cell phone kit that normally includes an AC charger, USB connector and hard-shell phone case with built-in screen protector.

3.2 Devices and accessories shall be capable of receiving service on multiple frequency bands and the associated mode of the contractor system (e.g. GSM: Global System for Mobile Communications, TDMA: Time Division Multiple Access/AMPS: Advanced Mobile Phone System, CDMA: Code Division Multiple Access/AMPS: Advanced Mobile Phone System, IDEN Integrated Digital Enhanced Network).

4. Customer Service

4.1. The contractor shall designate a POC and an alternate who are experienced in the handling of US Government accounts. The POC and alternate shall have full authority to act for the contractor on all contract matters relating to daily operation of this contract based on this PWS.

4.2. The contractor shall maintain 24/7 customer service to respond to trouble calls. Response to trouble calls must be in real time (i.e. no automated message services) and assistance must be provided by a person in a decision-making capacity. Response to trouble calls may require emergency processing of delivery orders, issuing wireless communication devices, providing replacement units, and resolving user connection and service problems. Trouble calls shall have a response within 12 hours, with a fix and/or replacement within 24 hours for domestic and international service.

5. Delivery

MESG-1 Detachment Guam

Address: 3003 Sumay Road, Bldg. 3179, Santa Rita, Guam, 96915

Requirements

Wireless Services and Devices in support of Maritime Expeditionary Security Group One Detachment Guam

Continuation of Packaging and Marking

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

0001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: R57092 CountryCode: USA MARITIME EXP SECURITY GROUP ONE BOX 357140, SAN DIEGO CA 92135-7140 SAN DIEGO, CA 92135-7140 UNITED STATES Government Representative, MESSG1 Telephone: 671-333-4104
Option Line Item 1001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: R57092 CountryCode: USA MARITIME EXP SECURITY GROUP ONE BOX 357140, SAN DIEGO CA 92135-7140 SAN DIEGO, CA 92135-7140 UNITED STATES Government Representative, MESSG1 Telephone: 671-333-4104
Option Line Item 2001	Inspection and Acceptance Location Both Destination Instructions: See Performance Work Statement (PWS) for Acceptance/inspection criteria. DoDAAC: R57092 CountryCode: USA MARITIME EXP SECURITY GROUP ONE BOX 357140, SAN DIEGO CA 92135-7140 SAN DIEGO, CA 92135-7140 UNITED STATES Government Representative, MESSG1 Telephone: 671-333-4104

Continuation of Deliveries or Performance

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
0001	Period of Performance From 15 May 2026 To 14 May 2027	12 Months	
Option Line Item 1001	Period of Performance From 15 May 2027 To 14 May 2028	12 Months	
Option Line Item 2001	Period of Performance From 15 May 2028 To 14 Oct 2028	6 Months	

Continuation of Accounting and Appropriation Data

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Dec 2016		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	Apr 2024		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Sep 2018		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Feb 2023		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation 2026-O0038)	Jan 2026		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	Jan 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038)	Jan 2026		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	Jan 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation 2026-O0038)	Jan 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)	Jan 2026		
52.222-37	Employment Reports on Veterans. (Deviation 2026-O0038)	Jan 2026		
52.222-54	Employment Eligibility Verification. (Deviation 2026-O0038)	Jan 2026		
52.233-3	Protest after Award. (Deviation 2026-O0038)	Jan 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	Jan 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Jan 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Aug 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Nov 2022		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	Apr 2024		
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Dec 2022		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Dec 2022		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	May 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Nov 2018		
252.232-7010	Levies on Contract Payments.	Nov 2006		
252.247-7023	Transportation of Supplies by Sea.	Sep 2024		
252.246-7008	Sources of Electronic Parts.	Dec 2022		
252.239-7018	Supply Chain Risk.	Nov 2022		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Dec 2022)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Not Applicable

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>N50082</u>
Issue By DoDAAC	<u>N62649</u>
Admin DoDAAC	<u>N62649</u>
Inspect By DoDAAC	==
Ship To Code	==

Ship From Code	==
Mark For Code	==
Service Approver (DoDAAC)	==
Service Acceptor (DoDAAC)	<u>R57092</u>
Accept at Other DoDAAC	==
LPO DoDAAC	==
DCAA Auditor DoDAAC	==
Other DoDAAC(s)	==

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

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(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Addendum to 52.212-4, Contract Terms and Conditions - Commercial Products and Commercial Services

Contract Terms and Conditions Required To Implement Statutes or Executive Orders — Commercial Products and Commercial Services

Addendum to Contract Clauses

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	Jan 2026		
52.222-3	Convict Labor. (Deviation 2026-O0038)	Jan 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	Jan 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	Mar 2026		
52.222-90	Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)	Mar 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.225-7012	Preference for Certain Domestic Commodities.	Mar 2022		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Dec 2022		
252.239-7010	Cloud Computing Services.	Dec 2022		

FAR Clauses Incorporated by Full Text

52.252-6 Authorized Deviations in Clauses. (Oct 2020)

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.217-8 Option to Extend Services. (Oct 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 7 calendar days.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Feb 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within prior to the expiration of the contract; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 30 months.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Jan 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

acquisition.gov.

(End of clause)

List of Contract Documents, Exhibits, or Attachments

Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	Jan 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Aug 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Sep 2016		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Feb 2023		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	Apr 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	May 2023		
252.239-7017	Notice of Supply Chain Risk.	Nov 2022		

DFARS Clauses Incorporated by Full Text

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (Apr 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Addendum to 52.212-1, Instructions to Offerors - Commercial Products and Commercial Services

Quoter/Offeror shall submit the following to be considered for award:

1. Administrative: Complete Page 1 of the offeror/contractor portion of the Standard Form 1449 (SF 1449) solicitation and if applicable, all amendments. Be sure to sign and date where required.

2. Price:

a. Complete Attachment (A) Price Sheet.

b. Price breakdown: Submit a separate firm-fixed-price quote with a breakdown of pricing which identifies the required services and devices. The total price must match the grand total on Attachment (A) Price Sheet.

3. Technical: A technical description of the services and devices being offered in sufficient detail to determine compliance with the requirements in the solicitation. This can be submitted as a separate standalone document or included in the price breakdown.

Pre-Quotation Conference: N/A. No pre-quotation conference is planned.

Quotation submittal: All quotations must be submitted to the Contract Specialist, Cynthia Cruz AND Patrick Collins via email at:

cynthia.r.cruz2.civ@us.navy.mil AND patrick.p.collins.civ@us.navy.mil

Hand delivery, postal mail, express mail, or fax submissions will not be accepted. Emails in excess of 10 MB will not be received. Quoters are reminded to be cognizant of the size of any attachments and the size of any email that approaches the limit. An email that is less than 10 MB in size does not guarantee it will be received.

Quote Validity: Quotes shall remain valid a minimum of 60 calendar days from the date specified for receipt of offers.

Questions: All questions regarding the solicitation shall be submitted via email to cynthia.r.cruz2.civ@us.navy.mil AND patrick.p.collins.civ@us.navy.mil no later than two (2) calendar days before submissions are due.

Evaluation - Commercial Products and Commercial Services

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation)

(Jan 2026)

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

Quotes will be evaluated in accordance with FAR 12.203.

The following factors will be used to evaluate offers:

Price: The Government will evaluate the total overall price for completeness and reasonableness.

Technical: The Government will evaluate the technical description to the extent the offered services and devices meet the minimum solicitation requirements.

Past Performance: The Government intends to evaluate the offeror's past performance using data obtained from SAM.gov, the Contractor Performance Assessment Reporting Systems (CPARS), and/or other Government databases. Offeror's without a record past performance will be not be evaluated favorably or unfavorably.

Technical and past performance, when combined, are approximately equal to price.

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

Addendum to Evaluation - Commercial Product and Commercial Services

Offeror Representations and Certifications - Commercial Products and Commercial Services

Addendum to Solicitation Provisions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Aug 2024		
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Dec 2016		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	Jan 2026		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	Jan 2026		
52.223-23	Sustainable Products. (Deviation 2026-O0038)	Jan 2026		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	Jan 2026		
52.217-5	Evaluation of Options. (Deviation 2026-O0038)	Jan 2026		

FAR Clauses Incorporated by Full Text

52.252-5 Authorized Deviations in Provisions. (Oct 2020)

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Jan 1998)

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

[acquisition.gov](https://www.acquisition.gov).

(End of provision)

DFARS Clauses Incorporated by Full Text

252.239-7009 Representation of Use of Cloud Computing. (Aug 2015)

REPRESENTATION OF USE OF CLOUD COMPUTING (SEP 2015)

(a) *Definition*. "Cloud computing," as used in this provision, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

(b) The Offeror shall indicate by checking the appropriate blank in paragraph (c) of this provision whether the use of cloud computing is anticipated under the resultant contract.

(c) *Representation.* The Offeror represents that it-

☐ Does anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

☐ Does not anticipate that cloud computing services will be used in the performance of any contract or subcontract resulting from this solicitation.

(End of provision)

252.204-7998 **Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043)** (Jan 2026) **Alternate A Deviation 2026-O0043** (Feb 2026)

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

☐ Use with Alternate I.

☐ Use with Alternate II.

☐ Use with Alternate III.

☐ Use with Alternate IV.

☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification (s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==
==	==	==	==

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)